

		Defendants to give notice
11	Armas vs. Costco Wholesale Corporation 24-01421908	Motions for Sanctions Plaintiff ROSALIDA SANCHEZ ARMAS (hereinafter “Plaintiff”) will and hereby does move the Court for an order: 1. Imposing monetary sanctions against Defendant COSTOCO WHOLESALE CORPORATION (hereinafter “Defendant”) and their attorney of record JULIAN SMITH, ESQ., STEPHEN M. HARPER ESQ. AND McCUNE & HARPER, LLP pursuant to Code of Civil Procedure §128.7, §128.5 and California Rule of Court § 2.30 2. Awarding monetary sanctions in the amount of \$18,350.00 to compensate for the mediation expenses. Motion is DENIED. Here, the bad acts MP complains about are: · Filing a Case Management Statement representing to the Court that they were interested in mediation and would participate in alternative dispute resolution. · Signing a Joint Stipulation to Continue Trial Misrepresenting to the Court the Basis for the Trial Continuance · Two business days prior to mediation notifying Plaintiff’s counsel that Defendant would not be making an offer at the mediation. (See Declaration of Attorney Anastasia Gkogka.) However, none of the above alleged conduct supports sanctions pursuant to CCP§§128.5 or 128.7, or CRC 2.30.

		Plaintiff attempts to paint the picture that Defendant wholly failed to participate in mediation, which has caused a delay in the case. However, Defendant presents evidence that Defendant participated in the mediation. (See Declaration of Sith¶3; Declaration of Harber¶3.) Plaintiff also suggests that Defendant filed a CMC statement indicating a willingness to mediate, and a stipulation to continue trial based on the need to mediate, which were inaccurate. That is, Plaintiff suggests that Defendant was not interested in meaningfully mediating at all, but rather, sought mediation to delay the case. However, indicating a willingness to voluntarily mediate on a CMC is not grounds for sanctions. Also, the Stipulations and Orders herein indicate a need for discovery, not a need to complete mediation, as the basis for trial continuance. (See ROAS 34, 44.) Defendant to give notice.
12	Bunker Hill Apartments, LLC vs. GMS Group Inc. 25-01505195	Motion for Order to Deposit Escrow Funds with the Court Plaintiffs Bunker Hill Apartments LLC and Tony Holder (“Plaintiffs”) move for an order directing that escrow funds currently held by La Costa Escrow, Inc. (“La Costa”) in the amount of approximately \$958,843.27 be deposited with the Clerk of the Orange County Superior Court. Plaintiffs’ Notice of Motion references Code of Civil Procedure sections 386, 386.1, and 386.5, which are interpleader statutes. Section 386.5 provides that a mere stakeholder may apply to the Court for an order discharging him or her from liability upon deposit with the Clerk of the Court the amount in dispute. These sections do not apply, as Plaintiffs are not the stakeholders here.